

STATE OF NEW YORK

2655--A

2025-2026 Regular Sessions

IN SENATE

January 22, 2025

Introduced by Sens. STEC, GALLIVAN, GRIFFO, OBERACKER -- read twice and ordered printed, and when printed to be committed to the Committee on Insurance -- recommitted to the Committee on Insurance in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to requiring certain health insurance policies to cover costs for pediatric acute-onset neuropsychiatric syndrome

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subsection (i) of section 3216 of the insurance law is
2 amended by adding a new paragraph 42 to read as follows:

3 (42)(A) Every health plan, and health insurance issuer offering health
4 insurance coverage in connection with a group health plan, shall provide
5 coverage for a participant or beneficiary who has pediatric acute-onset
6 neuropsychiatric syndrome if the attending physician of the participant
7 or beneficiary certifies in writing the medical necessity of that
8 proposed course of rehabilitative treatment.

9 (B) As used in this paragraph, the term "pediatric acute-onset neurop-
10 sychiatric syndrome" shall have the same meaning as such term is used in
11 paragraph (n) of subdivision one of section two hundred seven of the
12 public health law.

13 § 2. Subsection (k) of section 3221 of the insurance law is amended by
14 adding a new paragraph 24 to read as follows:

15 (24) (A) Every health plan, and health insurance issuer offering
16 health insurance coverage in connection with a group health plan, shall
17 provide coverage for a participant or beneficiary who has pediatric
18 acute-onset neuropsychiatric syndrome if the attending physician of the
19 participant or beneficiary certifies in writing the medical necessity of
20 that proposed course of rehabilitative treatment.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (B) As used in this paragraph, the term "pediatric acute-onset neurop-
2 sychiatric syndrome" shall have the same meaning as such term is used in
3 paragraph (n) of subdivision one of section two hundred seven of the
4 public health law.

5 § 3. Section 4303 of the insurance law is amended by adding a new
6 subsection (xx) to read as follows:

7 (xx)(1) Every health plan, and health insurance issuer offering health
8 insurance coverage in connection with a group health plan, shall provide
9 coverage for a participant or beneficiary who has pediatric acute-onset
10 neuropsychiatric syndrome if the attending physician of the participant
11 or beneficiary certifies in writing the medical necessity of that
12 proposed course of rehabilitative treatment.

13 (2) As used in this subsection, the term "pediatric acute-onset
14 neuropsychiatric syndrome" shall have the same meaning as such term is
15 used in paragraph (n) of subdivision one of section two hundred seven of
16 the public health law.

17 § 4. This act shall take effect on the first of January next succeed-
18 ing the date on which it shall have become a law and shall apply accord-
19 ing to its terms to all policies, contracts and certificates issued,
20 renewed, modified, altered or amended on or after such effective date.